

1. S-PR-0011380 In Re the Estate of Burke, Melissa Rose

Petition for final distribution is recommended for approval as prayed.

2. S-PR-0012045 In Re the Rovianne L Brown Fam Trust

Appearance is required for continued hearing on petition to instruct trustee re division and distribution of trust assets.

3. S-PR-0012051 In Re the Estate of Kaiser, Keith

Appearance is required for continued hearing on petition for final distribution as supplemented.

Court determination is needed: the verified petition alleges that petitioner distributed half the estate to herself. No court authorization was granted for any preliminary distribution. The amendatory supplement recasts the improper preliminary distribution as a loan to personal representative, without any explanation of any loan terms. Even if characterized as a loan, the loan would constitute impermissible self-dealing by personal representative. Court determination is needed as to whether the petition can be approved in light of the impermissible distribution.

Clarification is needed: the supplement further alleges, without any explanation, that petitioner owes more than \$16,000 to the estate (the "shortage amount") which she will replay over more than 16 months. Petitioner does not explain how final distribution can be accomplished where she intends to make payments to the estate for more than 16 months.

Note: petitioner has indicated she waives her personal representative fees in light of the misfeasance identified above, in the petition, and in the supplement.

Clarification is needed: the supplement alleges for the first time that the estate made loans to Kameron Kaiser and Kenneth Kaiser, without any explanation of loan terms. It is recommended the court require any order for distribution to specify the recipient of any debts owed the estate that are to be distributed.

These calendar notes are not a tentative ruling by the court on the merits of the petition. They are provided to assist the court and the parties to prepare for the hearing. Local Rule 80.1.4.

4. S-PR-0012648 In Re the Estate of Burbank, Lyle

Motion to be relieved as guardian ad litem is recommended for approval.